

Justice Before Our Debates: Mishpat and Tsedaqah

Two Hebrew words were doing their work twenty-five centuries before our culture wars. Neither American tribe gets to keep the definition it brought.

THE WORD

Justice Before the Argument

Say the word justice in an American church and watch the room sort itself. For half the listeners the word signals the gospel finally getting practical. For the other half it signals the gospel being traded for politics. Both halves are reacting to the American word. Neither reaction tells you anything about the biblical one.

The Old Testament word is mishpat, and it appears hundreds of times, woven through law, prophets, psalms, and proverbs. Its companion is tsedaqah, righteousness, and the two travel together so often that scholars treat the pair as a single idea, something like social righteousness, the rightness of a whole shared life before God. These words were doing their work two and a half millennia before our culture wars began, and they will not take instructions from either side of them.

That is the premise of this guide. Before we ask what justice should mean in our debates, we owe the text the courtesy of asking what it meant in its own mouth. I spent years assuming I already knew. I was carrying a definition into the text. The text, read slowly, took it from me.

THE GATE

Mishpat: Judgment Where Power Meets the Powerless

Mishpat begins in the gate, the open area inside a city's entrance where the elders sat and cases were heard. At its root it is judicial: render true verdicts, acquit the innocent, condemn the guilty, take no bribe, show partiality neither to the rich nor, Exodus adds with striking even-handedness, to the poor man in his lawsuit. The scales must be honest even when sympathy pulls hard in one direction.

But mishpat ranges wider than the courtroom. It also means rendering to people what they are due, their

rightful share, their protection, their care. Doing mishpat for the widow does not merely mean ruling fairly if she ever manages to appear in court. It means she receives what she is owed as a member of the covenant community. Job claims exactly this as his lifelong practice: I was eyes to the blind, feet to the lame, a father to the needy.

Nicholas Wolterstorff argues that this is why justice in Scripture cannot be reduced to fair procedure alone or to private charity alone. It is rights and dues grounded in the character of God himself. The gate was where the powerless found out whether God's people meant any of it.

THE QUARTET

Tsedaqah and the Four Faces

Tsedaqah is broader still: right relationship across every line of life, a day-to-day rightness in family, commerce, field, and gate. A man of tsedaqah in the Old Testament is not merely a man with correct private morals. Job again: he breaks the fangs of the unrighteous and makes them drop their prey.

And the texts keep specifying the same four faces. The widow. The orphan. The immigrant. The poor. Tim Keller calls them the quartet of the vulnerable, the people in an ancient agrarian society with no land, no family protection, no standing in the gate. Care for them is never presented as extra credit. It is the test. The Lord your God executes mishpat for the fatherless and the widow, says Deuteronomy, and loves the sojourner, giving him food and clothing. And you shall love the sojourner, for you were sojourners in Egypt. Jeremiah goes further, speaking of king Josiah: he judged the cause of the poor and needy. Is not this what it means to know me, declares the Lord.

Read that sentence again. Knowledge of God himself is defined there by what happens to the quartet. I have built entire sermon series on knowing God that never mentioned them once. The prophets would have had questions for me.

THE EVEN HAND

Older Than Both Our Slogans

These words predate both American usages, and they judge both.

To my friends on the right who hear social justice as a Trojan horse: the phrase mishpat utsedaqah is about as close to social righteousness as Hebrew can come, and it is everywhere. Justice in Scripture is not limited to punishing lawbreakers and protecting property. It includes what the vulnerable are due, and a society where the quartet is devoured while worship continues is, in the prophets' courtroom, an unjust society full of religious people. Amos said God despises such festivals. He did not add a clause exempting nations with sound economic theory.

To my friends on the left who have made justice a synonym for one party's platform: biblical mishpat is

not whatever the movement currently demands. It is anchored in God's character and God's law, it forbids partiality in every direction, it binds sexual life and honest speech and weights and measures into one fabric of righteousness, and it indicts its loudest advocates first. The prophets were not activists for an agenda. They were witnesses against everyone, themselves included. Woe is me, said Isaiah, before he said woe to anyone else.

Both tribes want the word without the Judge. The word does not come detached.

THE VERDICT

Micah 6:8 With Its Teeth Back In

Micah 6:8 may be the most quoted justice text in America, printed on banners by churches that agree on nothing else. He has told you, O man, what is good: do mishpat, love hesed, walk humbly with your God.

Restore its teeth. The verse is the closing word of a covenant lawsuit. God has taken Israel to court, recited his saving acts, and rejected their escalating liturgical offers, thousands of rams, rivers of oil, even a firstborn child. The verse is not an inspirational triad for the lobby wall. It is what remains when religious performance has been thrown out of the courtroom. Do justice in the gate, where your actual decisions touch the quartet. Love covenant loyalty, the stubborn faithfulness God has shown you. Walk humbly, a clause that silences the activist's pride and the traditionalist's pride in the same breath.

Brueggemann calls the prophetic task the nurturing of an alternative imagination, a way of seeing that the dominant culture cannot supply. Here is the alternative: a people who do not ask what justice means this election cycle, because they learned the word somewhere older than the election.

The word was never ours to define. It defines us. It has been defining us all along, in the gate, where the widow is still waiting for the verdict we keep postponing.

KEY TEXTS

Micah 6:8

Jeremiah 22:13-16

Amos 5:21-24

SOURCES

Generous Justice: How God's Grace Makes Us Just — Timothy Keller

Old Testament Ethics for the People of God — Christopher J.H. Wright

Justice: Rights and Wrongs — Nicholas Wolterstorff

The Prophetic Imagination — Walter Brueggemann